

2026 PLD 135
[Islamabad High Court]

Judges: Honorable Justice Saman Rafat Imtiaz



AMIR MUHAMMAD

versus

State

**TERRITORIAL JURISDICTION OF SPECIAL JUDGE CENTRAL UNDER
SECTION 179 CR.P.C.**

(a) Pakistan Criminal Law Amendment Act, 1958---S.Section 3(1), S.Section 4, S.Section 4(1), S.Section 4(2), S.Section 5(1), S.Section 5(7), S.Section 6; Criminal Procedure Code, 1898---S.Section 154, S.Section 173, S.Section 177, S.Section 179, S.Section 181(2), S.Section 188; Pakistan Penal Code, 1860---S.Section 11, S.Section 29, S.Section 30, S.Section 34, S.Section 109, S.Section 409, S.Section 415, S.Section 416, S.Section 419, S.Section 420, S.Section 468, S.Section 471, S.Section 489-F; Prevention of Corruption Act, 1947---S.Section 5(2); Prevention of Electronic Crimes Act, 2016---S.Section 6, S.Section 8, S.Section 10, S.Section 41; National Database and Registration Authority Ordinance, 2000---S.Section 3, S.Section 14, S.Section 18, S.Section 30, S.Section 35; Foreigners Act, 1946---S.Section 14; Federal Investigation Agency Act, 1974---S.Section 5(4); Indian Negotiable Instruments Act, 1881---S.Section 138---Territorial Jurisdiction of Special Judge Central under Section 179 Cr.P.C.---

The Court held that the Senior Special Judge Central, Islamabad lacks territorial jurisdiction to try the matter. The printing of CNICs in Islamabad was merely a result of the alleged offences and not an essential ingredient required for their completion under the relevant penal provisions. Consequently, the Court directed the return of the FIRs and Challan for submission to the court of competent jurisdiction.

Under Section 179 of the Code of Criminal Procedure, 1898, territorial jurisdiction is vested only where the act done and the consequence ensuing therefrom together constitute the ingredients of the offence. If an offence is complete in itself by reason of the act done, and the ensuing consequence is merely a result not essential for the completion of the offence, Section 179 Cr.P.C. is inapplicable. Furthermore, the fact that an investigating agency (such as the FIA) has nationwide jurisdiction to inquire and investigate does not enlarge the territorial limits of a Special Judge appointed under the Pakistan Criminal Law Amendment Act, 1958, which restricts jurisdiction to such limits fixed by the appropriate Government.

Relied upon: Riasat Ali v. The State 2024 PCr.LJ 1511; Muhammad Aslam v. The State PLD 1962 Sindh 499; Abdullah v. Raja Muhammad Hashim PLD 1962 Karachi 793; Chowdhry Riaz Ahmed v. The State PLD 1979 Sindh 119; Muhammad Rashid v. The State PLD 1960 SC 168

Referred to: Faqir Khan v. Bakhtawar Jan and 4 others 2019 PCr. LJ 1558; Mazhar Hussain v. The State and 2 others PLD 2010 Lahore 60; Total Parco Pakistan Limited through Authorized Officer v. Justice of peace/Additional Sessions Judge (West), Islamabad and 2 others 2021 YLR 1436; Basharat Iqbal v. The State and another 1993 SCMR 1901; Muhammad Sultan v. Muhammad Raza and others 2020 SCMR 1200; Mirza Ali Khan v. Sessions Judge, Peshawar 2002 SCMR 1461; Rao Fahd Ali Khan v. The State and another 2014 PCr. LJ 1071; Muhammad Younas Malik v. Drug Court of Sindh 1987 MLD 1619; K. Bhaskaran v. Sankaran Vaidhyan Balan and others AIR 1999 SC 3762; Ishwarlal Girdharilal Parekh v. State of Maharashtra 1969 PTD 904; Abdul Sattar Baig v. The State 2014 PCr.LJ 983; Ghulam Murtaza Khan v. Abdul Rahman 1980 PCr.LJ 594; Muhammad Ehsan Khan v. The State 1968 PCr.LJ 759; Shoukat Ali v. Muhammad Ismail 2022 PCr.LJN. 60; Abdul Aziz Fazlani v. Abdul Razzaq 2022 YLR Note 199; R.K. Vijayasaraty v. Sudha Seetharam 2019 INSC 216; Makhdoom Ahmed alias Zameer Ahmad v. Noor Ahmed 2003 YLR 2335; Syed Fayyaz Hussain Zaidi v. S.H.O. Police Station Chehliyak, Multan 2004 MLD 1403; Muhammad Salah-ud-Din v. NADRA PLD 2012 Lahore 378; Muhammad Abdul Rauf Siddiqui v. S.H.O. Police Station, Gulberg, Karachi 2013 PCr.LJ 70

Jan Muhammad Khan, Rashid Hafeez for Appellant.
Assistant Attorney General, Additional Attorney General for Respondent.
Mr. Muhammad Ali Afzal, Assistant Director (Legal), NADRA for Department.

Revision allowed. The Applications filed by the Petitioners under Section 4 of the Pakistan Criminal Amendment Act, 1958 read with Section 177, Cr.P.C, and other enabling provisions of law are allowed and the Senior Special Judge Central, Islamabad is directed to return the Subject FIRS and Challan submitted by the FIA to the prosecution or the concerned Investigating Officer for the purpose of its submission before the Court of competent jurisdiction.

SAMAN RAFAT IMTIAZ, J.---

1. This consolidated judgment shall decide all the above four titled Petitions as they involve similar questions of facts and law.
2. The Petitioners [Amir Muhammad, Muhammad Shah, Dawood Khan Mohmand, Maqsood Ahmad, Muhammad Yousaf, and Muhammad Azam] have, by way of the instant petition, assailed the Orders dated 25-2-2025 ("Impugned Orders") passed by the learned Senior Special Judge Central, Islamabad dismissing the Petitioners Applications for referral of the matters to the Court of competent jurisdiction.
3. The brief facts, as per the Memoranda of Petitions are that the Embassy of Afghanistan in Saudi Arabia surrendered to the Embassy of Pakistan in Riyadh 12,096 Pakistani passports, which had been surrendered by Afghan nationals. Upon scrutiny it was discovered that a significant number of passports (7613) had been fraudulently obtained by non-nationals who secured Pakistani Computerized National Identity Cards ("CNIC") and passports in connivance with the officials of the National Database and Registration Authority ("NADRA") and the Directorate of Immigration and Passport ("IMPASS"). The Respondent No. 2 [Noor Aslam, Assistant Director, (Ops), Regional Headquarter, NADRA Quetta, and Baluchistan] filed complaints against the officers allegedly involved in the unauthorized circumvention, interference and entry/access into NADRA's critical information infrastructure and breach of NADRA's Registration Policy. This led to the commencement of Enquiry No. E-58/2023 on 16-12-2023. During the course of the enquiry proceedings, it was revealed that the Petitioners who were the then Officers In-Charge, Center In-charge, and Assistant Directors, NADRA were implicated in the approval of CNICs for non-nationals, subsequently facilitating the processing and issuance of the CNICs with dishonest intention for illegal gain and in violation of Registration Policy issued by NADRA. The illicit conduct was allegedly carried out in collaboration with accompanying staff, fraudulent family heads/members who aided the infiltrator by posing as part of their family, attestors, and others. The enquiry culminated in the lodging of the FIRs Nos. 8, 11, 12, and 13 of 2024 ("Subject FIRs") against the Petitioners. The learned Senior Special Judge Central, Islamabad took cognizance of the matter. The Petitioners contend that since the offences leveled in the Subject FIR registered at Police Station Counter Terrorism Wing ("CTW")/Federal Investigation Agency ("FIA"), Islamabad are alleged to have committed in the territorial jurisdiction of Baluchistan the matter cannot be tried before the learned Senior Special Judge Central, Islamabad. Yet the report under Section 173, Cr.P.C. ("Challan") has been filed before the learned Senior Special Judge Central, Islamabad which is the wrong forum. As such, the Petitioners filed Applications under Section 4 of the Pakistan Criminal Amendment Act, 1958 read with Section 177, Cr.P.C, Section 41 of Prevention of Electronic Crimes Act, 2016 ("PECA, 2016") and other enabling provisions of law for referral of the case to the court of competent jurisdiction. However, the same has been dismissed vide the Impugned Orders in view of the Notification dated 23-09-2015 whereby the Police Station CTW/FIA, Islamabad has been given jurisdiction over the whole

of Pakistan, which the Petitioners have challenged by invoking the revisional jurisdiction of this Court by way of the instant petitions.

4. The learned counsel for the Petitioners submitted that as per Column 4 of the Subject FIRs the place of occurrence of the alleged offences was Balochistan. As such the Petitioners moved the Applications seeking referral of the case to the Court of competent jurisdiction which were dismissed by the learned Senior Special Judge Central, Islamabad vide the Impugned Orders by erroneously relying upon Notification dated 23-9-2015 issued by the Ministry of Interior giving jurisdiction to the Police Station CTW/FIA, Islamabad in respect of certain offences under various laws over the whole of Pakistan. He explained that such jurisdiction is to inquire, investigate and prosecute cases under certain laws but the said notification does not change the territorial jurisdiction of the Senior Special Judge Central, Islamabad. The learned counsel for the Petitioners submitted that under Section 4 of the Pakistan Criminal Law Amendment Act, 1958 it is the Court having territorial jurisdiction in respect of the alleged offence who shall try the case. He argued that the Senior Special Judge Central, Islamabad does not have the territorial jurisdiction to take cognizance of offences committed in Balochistan.
5. In answer to a question as to which provision of law can be invoked for the grant of the prayer of the Petitioners, the learned counsel for the Petitioners submitted that there is no specific provision of law and this position was considered by this Court in *Rao Fahd Ali Khan v. The State and another*, 2014 PCr. LJ 1071 where the issue of transmitting a case from the learned Magistrate to a Special Judge, Anti-Terrorism Court was involved. In such case this Court held that since the matter was neither triable by the Court of Sessions nor by the learned Magistrate as it was exclusively triable by the Special Judge ATC the Magistrate may return the FIR and the Challan to the prosecution for its onward submission before the concerned court. He therefore submitted that in case the Senior Special Judge Central, Islamabad in the instant matter also returns the FIR and the Challan to FIA, the FIA may submit the same before the Special Judge appointed under the Pakistan Criminal Law Amendment Act, 1958 having territorial jurisdiction as FIA is admittedly empowered to investigate and prosecute matters under the Pakistan Criminal Law Amendment Act, 1958 all over Pakistan.
6. The learned Assistant Attorney General has placed before this Court the Notification dated 27-11-2023 whereby in exercise of powers conferred under Section 4(2) of the Pakistan Criminal Law Amendment Act, 1958 the Federal Government has declared Judge, Special Court (Central-I), Islamabad as Senior Special Judge for the trial of cases under the said Act in the Islamabad Capital Territory. It further clarifies that under Section 4(3) of the above said Act, Senior Special Judge may, by order, in writing, transfer at any stage of the trial, any case from the Court of one Special Judge to the Court of another Special Judge having jurisdiction within the same territorial limits. He submitted that the FIA is fully authorized to conduct investigation all over Pakistan pursuant to Notification dated 23-9-2015, which refers to relevant laws related to inter alia cybercrimes/terrorism and points out that the Subject FIRs contain

offences under PECA, 2016. Therefore, he argued that the Senior Special Judge Central, Islamabad has the requisite jurisdiction in the matter.

7. Even otherwise, the learned Assistant Attorney General contended that although jurisdiction to inquire into and try an offence is generally where the offence is committed, however, due to the use of the word 'ordinarily' in Section 177, Cr.P.C. it is not confined to such location. He pointed out that under Section 179, Cr.P.C., the offence is also triable where consequences of the offence have ensued. In addition, Section 188, Cr.P.C. provides that where the offence is committed outside of Pakistan it may be dealt with at any place within Pakistan.
8. In this background he submitted that the surrendered passports were brought into the country through Islamabad and since it is admitted that FIA has jurisdiction to investigate the concerned offence all over Pakistan the scrutiny of the passports surrendered in Riyadh was conducted in Islamabad, which resulted in the knowledge of the FIA about the commission of the offence in Islamabad. In this regard he referred to Section 154, Cr.P.C. to submit that an FIR may be lodged where the knowledge is gained and accordingly the Subject FIRs were registered in Islamabad. He argued that since knowledge was gained in Islamabad the same is a consequence that ensued, which falls under 179, Cr.P.C. In support of his submissions he has relied upon *Faqir Khan v. Bakhtawar Jan and 4 others*, 2019 PCr. LJ 1558 and *Mazhar Hussain v. The State and 2 others*, PLD 2010 Lahore 60 in which the Division Benches of both the Lahore High Court as well as the Peshawar High Court came to the conclusion that the place where knowledge of the dishonour of a cheque was gained by the complainant can also be treated as a consequence that ensues the alleged offence.
9. The learned Assistant Attorney General relied upon the Complainants written by the Respondent No. 2/complainant to highlight that they have been made on the letterhead of NADRA Headquarter located in Islamabad. He also submitted that apart from the fact that FIR has been lodged in Islamabad, the Challan has also been submitted within the territorial jurisdiction of the Senior Special Judge Central, Islamabad and bail has been granted to the Petitioners by this Court and some of the witnesses are also located in Islamabad. First of all perusal of the Complaints shows that although the letterhead of NADRA Headquarters, Islamabad is used the Complainant under his name and signature has categorically written 'Quetta' which seems to suggest that the Complaint was made from Quetta. There is no material before this Court to substantiate the statement made that he was flown into Islamabad from Quetta to make the Complaint. Even otherwise the Respondent failed to explain how filing of complaint or submission of challan at a certain location can vest jurisdiction upon the Senior Special Judge Central, Islamabad if the act done and the ensuing consequences comprising the offence have taken place elsewhere.
10. Similarly, the Respondents relied upon various documents of FIA in the police file issued from the FIA Headquarters for purposes of investigation but failed to show how the investigation carried out by FIA in Islamabad by virtue of

jurisdiction conferred upon it under Notification dated 23-9-2015 can vest jurisdiction in the Senior Special Judge Central, Islamabad who has jurisdiction only for trial of cases under the Pakistan Criminal Law Amendment Act, 1958 in the Islamabad Capital Territory.

11. The learned Additional Attorney General also relied upon Section 179, Cr.P.C. He submitted that the Subject FIRs specifically mention that the offence committed by the Petitioners was the grant of approval of CNICs for non-nationals and the subsequent facilitation, processing and issuance of the CNICs with dishonest intention for illegal gain and in violation of Registration Policy issued by NADRA. He explained that processing of CNICs takes place in Islamabad as per NADRA law and policy as all the CNICs issued anywhere in Pakistan are processed and printed In Islamabad. He relied upon Total Parco Pakistan Limited through Authorized Officer v. Justice of peace/Additional Sessions Judge (West), Islamabad and 2 others, 2021 YLR 1436; Faqir Khan v. Bakhtawar Jan and 4 others, 2019 PCr.LJ 1558; Mazhar Hussain v. The State and 2 others, PLD 2010 Lahore 60; Basharat Iqbal v. The State and another, 1993 SCMR 1901; Muhammad Sultan v. Muhammad Raza and others, 2020 SCMR 1200 and Mirza Ali Khan v. Sessions Judge, Peshawar, 2002 SCMR 1461.
12. The learned Assistant Attorney General argued that the Senior Special Judge Central, Islamabad has jurisdiction for the trial of the offences in question under Section 177 Cr.P.C as an offence consists of mens rea as well as actus reus. He submitted that the act of processing and printing of CNICs was carried out in Islamabad which constitutes part of the actus reus. He submitted a Note dated 17-7-2025 issued by the Director, Operation Division informing that the processing of identification documents is carried out at the center and subsequently printing and/or dispatching of identification documents is executed. The learned AAG has relied upon Sections 3, 14, and 35 of the National Database and Registration Authority Ordinance, 2000 to submit that the printing of CNICs is carried out at Islamabad and at no other location notwithstanding existence of branch or registration offices elsewhere in Pakistan.
13. Mr. Muhammad Ali Afzal, Assistant Director (Legal), NADRA has clarified in respect of a query of the Court that for purposes of printing of CNICS NADRA is self-sufficient and does not utilize the services of the Pakistan Printing Press Corporation and such printing facilities employed by NADRA are located only in Islamabad and a latest facility has been initiated in Lahore. He filed a Report dated 28-7-2025 before this Court confirming that NADRA operates a centralized printing facility located at its Headquarter in Islamabad utilized for the printing and dispatch of CNICs to the designated locations/centers for subsequent delivery to the applicant which therefore establishes that printing of the CNICs takes place in Islamabad including the CNICs which were allegedly fraudulently obtained by non-nationals in connivance with NADRA officials including the Petitioners but that issuance takes place at the designated centers where the applicant is located.

14. On the other hand, the learned counsel for the Petitioners pointed out that Islamabad has nowhere been mentioned in the Subject FIR or the Challan. He argues that the printing of the CNICs in Islamabad cannot be described as a consequence of the alleged offences and that issuance does not take place in Islamabad except for residents of Islamabad rather the CNICs are merely dispatched from Islamabad to the relevant place where issuance to the card holder taken place which in the instant case was not Islamabad.
15. He submitted that the case law relied upon by the learned Assistant Attorney General is distinguishable as it pertains to the offence of 489-F, P.P.C. where dishonour of cheque is part of the offence and as such the place where the cheque is dishonoured is also considered the place where the offence is committed. He further submitted that the Notification dated 23-9-2015 makes it abundantly clear that FIA has the jurisdiction to enquire, investigate and prosecute cases pertaining to the stipulated offences in the whole of Pakistan. Had the Legislature intended the same for the Special Judge under the Pakistan Criminal Law Amendment Act, 1958 the legislature would have clarified in the same unambiguous manner that such a Special Judge would also have jurisdiction to try offences under the said act committed anywhere in Pakistan but the Legislature restricted the jurisdiction of the Special Judge to such territorial limits as may be fixed by the appropriate Government. The learned counsel for the Petitioners denies that any of the witnesses are in Islamabad.
16. I have heard the arguments advanced by the learned counsel for the parties and perused the available record and considered the applicable law.
17. The Subject FIRs have been registered against the Petitioners under Sections 6, 8, and 10 of the Prevention of Electronic Crimes Act, 2016 ("PECA, 2016") read with Section 30 of the National Database and Registration Authority Ordinance, 2000 ("NADRA Ordinance") read with Section 5(2) of the Prevention of Corruption Act, 1947 ("PCA 1947") read with Section 14 of the Foreigners Act, 1946 ("Foreigners Act") read with Sections 419, 420, 468, 471, 409, 34, and 109 of the Pakistan Penal Code, 1860 ("P.P.C.").

FIA jurisdiction

18. Given that the Subject FIRs are registered, inter alia, under PECA, 2016, which pertains to, inter alia, cyber-crimes/terrorism, the FIA conducted inquiry and investigation into the matter pursuant to Notification dated 23-09-2015 whereby the Federal Government, in exercise of the powers conferred under subsection (4) of Section 5 of the Federal Investigation Agency Act, 1974 declared the Office of Director, CTW, FIA Headquarters, Islamabad to be a Police Station for the purposes of Cr.P.C., having jurisdiction in the whole of Pakistan to inquire, investigate, and prosecute cases registered under the Protection of Pakistan Act, 2014, Anti-Terrorism Act, 1997, Anti-Money Laundering Act, 2010 or any other relevant law related to terrorism, terrorist financing and cyber-crimes/terrorism.

Jurisdiction of Special Judge under the Pakistan Criminal Amendment Act, 1958

19. The Challan was submitted to the learned Senior Special Judge Central, Islamabad appointed under the Pakistan Criminal Amendment Act, 1958. A Special Judge is appointed under Section 3(1) of the Pakistan Criminal Amendment Act, 1958 by the appropriate Government (as defined in the said Act) by notification in the official Gazette to punish offences specified in the Schedule of the said Act, which pursuant to Section 5(1) thereof are triable exclusively by a Special Judge. The Schedule of offences under the Pakistan Criminal Amendment Act, 1958 includes but is not limited to the offences punishable under Sections 409 to 420, P.P.C., and as attempts, abetments, and conspiracies in relation thereto or connected therewith, when committed by any public servant as well as offences punishable under the Prevention of Corruption Act, 1947.
20. As noted herein above, the Subject FIRs have been registered under, inter alia, Sections 409, 419, 420, 34, and 109, P.P.C. against the Petitioners, who are admittedly public servants. The Subject FIRs have been registered for other offences as well which do not fall within the jurisdiction of the Special Judge per se as they are not contained in the Schedule to the Pakistan Criminal Amendment Act, 1958 but Section 5(7) of the Pakistan Criminal Amendment Act, 1958 provides that the Special Judge may, when trying an offence under the said Act, also charge and try other offences not so triable with which the accused may, under the provisions of Cr.P.C., relating to the joinder of charges, be charged at the same trial. Thus the offences the Petitioners have allegedly committed under the Subject FIRs are triable by the Special Judge under the Pakistan Criminal Amendment Act, 1958.¹
21. Notwithstanding the generality of the foregoing, the Special Judge, pursuant to Section 4(1) of the Pakistan Criminal Amendment Act, 1958, has jurisdiction within such territorial limits as may be fixed by the appropriate Government by notification in the official Gazette and may take cognizance of any offence committed or deemed to have been committed within such limits and triable under the Act. The Notification dated 27-11-2023 relied upon by the Respondents has been issued in exercise of the powers under Section 4(2) of the Pakistan Criminal Amendment Act, 1958 and as such declares who the Senior Special Judge for trial of cases under the Pakistan Criminal Amendment Act, 1958 is in the Islamabad Capital Territory. In any event, it is clear that the Senior Special Judge, Central, Islamabad has only been conferred the power to try cases under the Pakistan Criminal Law Amendment Act, 1958 in the Islamabad Capital Territory. Therefore, the question arises as to how the Senior Special Judge Central, Islamabad can take cognizance of offences Committed in Balochistan.
22. The Respondents' reliance upon the Notification dated 23-09-2015 is misconceived. Merely because the investigation agency is empowered to conduct the investigation into the alleged offences in the whole of Pakistan does not in any way enlarge the jurisdiction of the Special Judge under the Pakistan Criminal Law Amendment Act, 1958 to the whole of Pakistan.
23. A similar issue arose in the case of Riasat Ali v. The State, 2024 PCr.LJ 1511, in which an FIR was registered at Police Station FIA Circle, Gujrat whereas the

place of occurrence in column 4 of the FIR was mentioned as Phalianwali, Mandi Bahauddin. The petitions for post arrest bail filed by the accused were rejected both by the Additional Sessions Judge, Gujrat as well as the Additional Sessions Judge, Phalian for lack of jurisdiction. The matter ended up before the Lahore High Court who noted that the FIA is only an investigating agency and that the FIA Act, 1974 deals with the investigation and inquiry of offences included in the Schedule of the said Act but nowhere does the Act provide for the establishment of any Special Court for purpose of taking cognizance and conducting trial regarding such cases. In such circumstances, it was held that the Court established for taking cognizance and conducting trial of the case in the parent statute will take cognizance of the offence and conduct trial. Therefore, the Court found that it is the Additional Sessions Judge, Phalian who will take cognizance of the offence in such case and conduct trial.

24. Similarly, in the instant case, the Special Judge who can take cognizance of the alleged offences and conduct trial is to be determined in light of the Pakistan Criminal Law Amendment Act, 1958 or the Cr.P.C., to the extent that the latter applies by virtue of Section 6 of the Pakistan Criminal Law Amendment Act, 1958.

Section 179 Cr.P.C.

25. The Respondents relied upon Section 179 Cr.P.C., to argue that the alleged offences can be tried by the Senior Special Judge Central, Islamabad as the printing of the CNICs was carried out in Islamabad which has been described as a consequence of the alleged acts committed by the Petitioners. The Subject FIRs do not specifically mention that the CNICs were printed in Islamabad. However, the Subject FIRs do allege that the Petitioners facilitated in the processing of the CNICs which could arguably include printing. The only facility available for printing CNIC at the relevant time was located in Islamabad. Thus, it appears that the printing of the CNICs that were issued to non-nationals was carried out in Islamabad. No other act or consequence has been identified as part of the processing that took place in Islamabad. The question that arises is whether printing of the CNICs is a consequence that ensued due to the nets of the Petitioners that comprised the alleged offences so as to vest jurisdiction in the Senior Special Judge, Central, Islamabad to try the case under the Pakistan Criminal Law Amendment Act, 1958.
26. Under Section 179, Cr.P.C. the Petitioners can be tried for the alleged offences where the act is done or where the consequence ensues. In the case of Muhammad Aslam v. The State, PLD 1962 Sindh 499 the Court observed that there is ample authority for the view that Section 179, Cr.P.C., contemplates cases where the act done and the consequence ensuing therefrom together constitute the offence². In other words, the offence consists of something which has been done by the person accused and of the consequence which has ensued as a result of the doing of that thing. In Muhammad Aslam, the misrepresentation by the two principal accused was done at Karachi whereas the delivery of money as a consequence thereof took place in Chittagong and therefore under the provisions of Section 179, Cr.P.C., the offence under

Section 420, P.P.C. was held triable either at Karachi or at Chittagong. Similarly, in *Abdullah v. Raja Muhammad Hashim*, PLD 1962 Karachi 793 it was held that it is obvious that before Section 179, Cr.P.C. can apply the offence with which a person could be tried must be an offence by reason of anything that has been done and of any consequence which is ensued. Thus, both the act and its consequences should be part and ingredients of the offence. The Court noted that the word 'and' in the section is significant in this connection.

27. The plain meaning of the section therefore is that both the act done and the consequences should form part of the offence for purposes of Section 179, Cr.P.C. For instance, in *Muhammad Younas Malik v. Drug Court of Sindh*, 1987 MLD 1619, pursuant to Section 179, Cr.P.C., the place of manufacturing of sub-standard drugs and the place of sale both were held to have jurisdiction to try the offences under the Drugs Act, 1976 which prohibits, inter alia, the manufacture for sale of sub-standard drugs.
28. The Supreme Court of India *K. Bhaskaran v. Sankaran Vaidhyan Balan and others*, AIR 1999 SC 3762 considered the question of territorial jurisdiction in terms of Sections 177 and 179, Cr.P.C., in a trial for the offence of dishonour of cheque under Section 138 of the Indian Negotiable Instruments Act, 1881 which is somewhat different from Section 489-F, P.P.C. and is therefore reproduced herein below for ready reference:

"CHAPTER XVII

OF PENALTIES IN CASE OF DISHONOUR OF CERTAIN CHEQUES FOR INSUFFICIENCY OF FUNDS IN THE ACCOUNTS

138. Dishonour of cheque for insufficiency, etc., of funds in the account-Where any cheque drawn by a person on an account maintained by him with a banker for payment of any amount of money to another person from out of that account for the discharge, in whole or in part, of any debt or other liability, is returned by the bank unpaid, either because of the amount of money standing to the credit of that account is insufficient to honour the cheque or that it exceeds the amount arranged to be paid from that account by an agreement made with that bank, such person shall be deemed to have committed an offence and shall, without prejudice to any other provision of this Act, be punished with imprisonment for a term which may be extended to two years, or with fine which may extend to twice the amount of the cheque, or with both:

Provided that nothing contained in this section shall apply unless-

- (a) the cheque has been presented to the bank within a period of six months from the date on which it is drawn or within the period of its validity, whichever is earlier.
- (b) the payee or the holder in due course of the cheque, as the case may be, makes a demand for the payment of the said amount of money by giving a notice; in writing, to the drawer of the cheque, within thirty days of the receipt of

information by him from the bank regarding the return of the cheque as unpaid: and

(c) the drawer of such cheque fails to make the payment of the said amount of money to the payee or, as the case may be, to the holder in due course of the cheque, within fifteen days of the receipt of the said notice.

Explanation. For the purposes of this section, "debt of other liability" means a legally enforceable debt or other liability." [Emphasis added].

29. The Supreme Court of India observed that the offence under Section 138 of the Indian Negotiable Instruments Act, 1881 can be completed only with the concatenation of a number of acts and listed the acts which are the components of the said offence: (1) drawing of the cheque, (2) presentation of the cheque to the bank, (3) returning the cheque unpaid by the drawee bank, (4) giving notice in writing to the drawer of the cheque demanding payment of the cheque amount, and (5) failure of the drawer to make payment within 15 days of the receipt of the notice. It was observed that it is not necessary that all the above five acts should have been perpetrated at the same locality. The Court appreciated that it is possible that each of those five acts could be done at five different localities but held that the concatenation of all the above five is sine qua non for the completion of the offence under Section 138 *ibid*. Thus it was held that if the five different things were done in five different localities any of the courts exercising jurisdiction in one of the five local areas can become the place of trial for the offence under Section 138 of the Indian Negotiable Instruments Act, 1881:

30. On the other hand, if the offence is complete in itself by reason of the act having been done and the consequence is a mere result of it which was not essential for the completion of the offence then Section 179, Cr.P.C. would not be applicable.³ For example, it was held in *Chowdhry Riaz Ahmed v. The State*, PLD 1979 Sindh 119 that blacklisting due to the alleged defamation was a consequence which was not one of the ingredients constituting the offence of defamation and as such would not attract the application of Section 179, Cr.P.C.

Where the offence under Section 409, P.P.C. may be tried

31. Having said that insofar as the offence of "criminal breach of trust by a public servant" under Section 409, P.P.C. is concerned, Section 179, Cr.P.C. does not apply which is clear by the fact that the specific section prescribing jurisdiction for an offence of "criminal breach of trust" is included in Section 181(2), Cr.P.C.,⁴ which reads as under:

"(2) Criminal misappropriation and criminal breach of trust. The offence of criminal misappropriation or of criminal breach of trust may be inquired into or tried by a Court within the local limits of whose jurisdiction any part of the property which is the subject of the offence was received or retained by the accused person, or the offence was committed." [Emphasis added].

Thus, the offence of "criminal breach of trust" can be tried by the Court within whose local limits of jurisdiction the offence is committed by a public servant as well as the Court where any part of the property which is the subject of the offence is received or retained by the accused persons. The offence of "criminal breach of trust" allegedly committed by the Petitioners, being public servants, occurred in Balochistan whereas there is no allegation that the Petitioners received or retained in Islamabad any part of the property which is the subject of the alleged offences. Thus the Senior Special Judge Central, Islamabad cannot try the Petitioners for the offence under Section 409, P.P.C. unless he can try them for any of the other alleged offences by virtue of Section 5(7) of the Pakistan Criminal Amendment Act, 1958.

32. Now let me consider whether, pursuant to Section 179, Cr.P.C., the printing of the CNICs in Islamabad can be considered a consequence of the acts constituting the remaining offences allegedly committed by the Petitioners and which are triable under the Pakistan Criminal Amendment Act, 1958 so as to vest jurisdiction in the Senior Special Judge Central, Islamabad try the Petitioners.

Offences under Sections 419 and 420, P.P.C.

33. The two other offences that the Petitioners have allegedly committed under the P.P.C., which are triable by the Special Judge under the Pakistan Criminal Law Amendment Act, 1958 are the offences under Sections 419 and 420, P.P.C.:

"419. Punishment for cheating by personation: Whoever cheats by personation shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both." [Emphasis added].

As can be seen from the reproduction, Section 419, P.P.C. provides the punishment for "cheating by personation" which has been defined in Section 416, P.P.C. as follows:

"416. Cheating by personation: A person is said to "cheat by personation" if he cheats by pretending to be some other person, or by knowingly substituting one person for another, or representing that he or any other person is a person other than he or such other person really is.

Explanation: The offence is committed whether the individual personated is a real or imaginary person." [Emphasis added].

"420. Cheating and dishonestly Inducing delivery of property: Whoever cheats and thereby dishonestly induces the person deceived to deliver any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment, of either description for a term which may extend to seven years, and shall also be liable to fine." [Emphasis added].

It may be noted that the ingredient of "cheating" is an essential prerequisite for the offence under Section 419, P.P.C.⁵ Similarly, for the commission of the offence under Section 420, P.P.C. all the ingredients of "cheating" would be required⁶. The offence of "cheating" is provided for In Section 415, P.P.C. as follows:

"415. Cheating: Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or Intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person or any other person in body, mind, reputation or property, is said to "cheat".

Explanation: A dishonest concealment of facts is a deception within the meaning of this section"

34. In order to determine whether printing of CNICs in Islamabad is a consequence that has ensued by anything done by the Petitioners which consequence together with the act done is, as envisaged in Section 179, Cr.P.C., the reason why the Petitioners have been accused of committing the alleged offences under Sections 419 and 420, P.P.C. it is important to identify the act done and the consequence which ensues, if any, which together constitute the alleged offences or without which the alleged offences would not be complete.
35. To this end, as a preliminary point, it may be noted that the word "person" has been defined under Section 11, P.P.C. in light of which the Supreme Court in Muhammad Rashid v. The State, PLD 1960 SC 168 concluded that the word "person" as used in Section 415, P.P.C. should be held to cover "Government". As such, it was held that Section 415, P.P.C. is applicable to the case of a person deceiving one Government officer so as to obtain some property from the hands of another Government officer, in consequence of the false representation made to the first officer. The Supreme Court explained that if a criminal, by cheating a Government servant, induces either him or another Government officer, in consequence, to deliver to him certain property belonging to the government there is no reason why the act of the criminal should not be held to be covered by Section 415, P.P.C. In such a case, the "person" deceived would be the Government which could only act through one or other officer in its employment. Insofar as "property" is concerned, under Section 18 of the NADRA Ordinance, 2000 the card issued under the said Ordinance shall be the property of the Federal Government and as such any wrong committed in respect of it is an offence against the State⁷.
36. Thus the case against the Petitioners under Sections 419 and 420, P.P.C. appears to be that they being public servants deceived the Government by fraudulently or dishonestly inducing the Government, acting through one or other officers in its employment, to deliver/issue CNIC's to non-nationals by approving their applications and facilitating the processing and issuance of the CNICs with dishonest intention for illegal gain and in violation of Registration Policy issued by NADRA in collaboration with accompanying staff and

knowingly substituted family heads/members who aided the infiltrator [Afghan nationals] by posing to be part of their family, attestors, and others.

Acts done or ensuing consequences comprising the offences under Sections 415, 419, and 420, P.P.C.

37. The act of cheating under Section 415, P.P.C. would include the fraudulent or dishonest inducement by deception whereas the consequences of cheating under Section 415, P.P.C. would include the delivery of property, consent to retain any property, the act or omission of anything which the person deceived would not do or omit to do but for the deception which causes or is likely to cause damage or harm as described in the said provision of law. Thus the consequences fall under two categories: (a) delivery of property and/or consent to retain any property; and (b) the acts or omissions which the deceived would not do or omit to do if he was not so deceived⁸. The Supreme Court of India in *Ishwarlal Girdharilal Parekh v. State of Maharashtra*, 1969 PTD 904 held that even where no delivery of property is involved, the accused may be guilty of "cheating" where they may have intentionally induced an officer who is deceived, to do or omit to do anything, which he would not do or omit if he were not so deceived and they will be liable for punishment for cheating. Thus pursuant to Section 179, Cr.P.C., the offence under Section 415, P.P.C. would be triable at the place where any of the said acts constituting the said offence occurred or where any of the aforementioned consequences ensue.
38. The offence under Section 416 punishable under Section 419, P.P.C. is complete when a person commits the offence of cheating by pretending to be some other person or by knowingly substituting one person for another or representing that he or any other person is a person other than he or such other person really is. Thus pursuant to Section 179, Cr.P.C. the offence under Section 419, P.P.C. would be triable at the place where the person commits the act of personation in any manner as envisaged in Section 416, P.P.C. and where any act or consequence comprising the offence of "cheating" under Section 415, P.P.C. was committed or ensued, as the case may be.
39. Similarly, the offence punishable under Section 420, P.P.C. comprises two distinct phases namely, the act of cheating and delivery of property as a result of dishonest inducement brought on by the act of cheating⁹. Thus it was held in *Muhammad Aslam (Supra)* that under Section 179, Cr.P.C., the offence under Section 420, P.P.C. would be triable at the place where the misrepresentation was done and also where the delivery of money as a consequence thereof took place.
40. In addition, the offence under Section 420 would also be complete when a person is dishonestly induced by way of cheating to make alter or destroy valuable security, or anything which is signed or sealed, and which is capable of being converted into valuable security¹⁰, "Valuable security" has been defined under Section 30, P.P.C. as a document which is, or purports to be a document whereby any legal right is created, extended, transferred, restricted, extinguished or released, or whereby, any person acknowledges that he lies

under legal liability, or has not certain legal right. The word "document" has been defined in Section 29 as any matter expressed or described upon any substance by means of letters, figures or marks, or by more than one of those means, intended to be used, or which may be used, as evidence of that matter. A CNIC is a legal document for the identification of a citizen¹¹ and as such does not fall within the definition of "valuable security" the making of which by cheating would attract the provision of Section 420, P.P.C.

41. Hence, the only acts and consequences we are concerned with are of cheating by personation under Section 419, P.P.C. and of cheating and dishonestly inducing delivery of property under Section 420, P.P.C. In the instant case, the alleged acts of cheating by personation as well as the alleged acts of cheating and dishonest inducement of delivery and the consequence thereof i.e., the delivery (issuance) of the CNICs to non-nationals occurred in Balochistan.
42. Insofar as printing is concerned, it has to do with the creation of the property. However, creation of the property which is delivered by the person deceived as a consequence of the deception is not an ingredient of the offences under Section 419 or 420. Therefore, it is inconsequential where the printing of the CNICs took place for purposes of Section 179, Cr.P.C. In the circumstances of the instant case, the printing of the CNICs was, at best, a mere result of the alleged approval granted by the Petitioners (which may be practically necessary for the consequences of the alleged offences to ensue but) was not an essential ingredient for the completion of the offences under Section 419, or 420, P.P.C. by definition whereas Section 179 applies to those offences which by their very definition consist of an act and its consequences¹².
43. It is reiterated that the consequence must be such that it forms part of the offence and the act and the consequence must together constitute the offence¹³. In other words, both the act and the consequence which have ensued must be the reason why the person is accused of the commission of the offence. The consequence which was necessary for the completion of the said offences was delivery/issuance of the CNICs which occurred in Balochistan.

Section 5(2) of the PCA, 1947

44. The Petitioners have also been alleged to have committed the offence under Section 5(2) of the PCA, 1947, which is reproduced as follows:

"5. Criminal misconduct: (1) A public servant is said to commit the offence of criminal misconduct

(a) if he accepts or obtains, or agrees to accept or attempts to obtain from any person for himself or for any other person, any gratification (other than legal remuneration) as a motive or reward such as is mentioned in Section 161 of the Pakistan Penal Code, or

(b) if he accepts or agrees to accept or attempts to obtain for himself or for any other person, any valuable thing without consideration or for a consideration which he knows to be inadequate, from any person whom he knows to have been, or to be, or to be likely to be concerned in any proceeding or business, transacted

by him, or having any connection with the official functions of himself or of any public servant to whom he is subordinate, or from any person whom he is subordinate, or from any person whom he knows to be interested in or related to the person so concerned, or

(c) if he dishonestly or fraudulently misappropriates or otherwise converts for his own use any property entrusted to him or under his control as a public servant or allows any person to do so, or

(d) if he, by corrupt or illegal means, or by otherwise abusing his position as public servant, obtains for himself or for any other person any valuable thing or pecuniary advantage, or

(e) if he, or any of his dependents, is in possession, for which the public servant cannot reasonably account of pecuniary resources or of property disproportionate to his known sources of income.

Explanation: In this clause, "dependent" in relation to a public servant, means, his wife, children and step-children, parents, sisters and minor brothers residing with and wholly dependent on him.

(2) Any public servant who commits or attempts to commit criminal misconduct shall be punishable with imprisonment for a term which may extend to ten years but not less than seven years." [Emphasis added].

45. A public servant who accepts, obtains or agrees to accept or attempts to obtain illegal gratification or any valuable thing without consideration or for inadequate consideration from stipulated persons; dishonestly or fraudulently misappropriates or otherwise converts for his own use any property entrusted to him or under his control or allows any other person to do so; obtains any valuable thing or pecuniary advantage by corrupt or illegal means or by otherwise abusing his position; or if he or any of his dependents are in possession of pecuniary resources or property disproportionate to his known sources of income commits the offence of criminal misconduct punishable under Section 5(2) of the PCA, 1947. The printing of the CNICs is in no way an act or the consequence which constitute the offence the Petitioners allegedly committed under Section 5(2) of the PCA, 1947.

46. The case law relied upon by the Respondent whereby it has been held that place of gaining knowledge by virtue of dishonour of a cheque constitutes a consequence of the offence under Section 489-F, P.P.C. and therefore such offence can be investigated and tried at the place of dishonour of the cheque is distinguishable as dishonour of the cheque is a substantive part of under Section 489-F, P.P.C. without which the offence under Section 489-F, P.P.C. would not be complete.

47. In view of the foregoing, the Senior Special Judge, Central, Islamabad does not have territorial jurisdiction to try the case registered against the Petitioners under the Subject FIRs and therefore the instant revision petitions are allowed and the Impugned Orders are hereby set aside. Resultantly, the Applications filed by the Petitioners under Section 4 of the Pakistan Criminal Amendment

Act, 1958 read with Section 177, Cr.P.C, and other enabling provisions of law are allowed and the Senior Special Judge Central, Islamabad is directed to return the Subject FIRS and Challan submitted by the FIA to the prosecution or the concerned Investigating Officer for the purpose of its submission before the Court of competent jurisdiction.

MH/2/Isl. Revision allowed.

- 1 *Abdul Sattar Baig v. The State*, 2014 PCr.LJ 983.
- 2 *Ghulam Murtaza Khan v. Abdul Rahman*, 1980 PCr.LJ 594.
- 3 *Muhammad Aslam v. The State*, *PLD 1962 Sindh 499*.
- 4 *Abdullah v. Raja Muhammad Hashim*, PLD 1962 Sindh 793.
- 5 *Muhammad Ehsan Khan v. The State*, *1968 PCr.LJ 759*.
- 6 *Shoukat Ali v. Muhammad Ismail*, *2022 PCr.LJN. 60*; *Abdul Aziz Fazlani v. Abdul Razzaq*, *2022 YLR Note 199* and *R.K. Vijayasarathy v. Sudha Seetharam*, *2019 INSC 216*.
- 7 *Makhdoom Ahmed alias Zameer Ahmad v. Noor Ahmed*, *2003 YLR 2335*.
- 8 *Syed Fayyaz Hussain Zaidi v. S.H.O. Police Station Chehliyak, Multan*, *2004 MLD 1403*.
- 9 *Shoukat Ali v. Muhammad Ismail (Supra)*.
- 10 *Abdul Aziz Fazilani v. Abdul Razzaq (Supra)*.
- 11 *Muhammad Salah-ud-Din v. NADRA*, *PLD 2012 Lahore 378*.
- 12 *Muhammad Abdul Rauf Siddiqui v. S.H.O. Police Station, Gulberg, Karachi*, 2013 PCr.LJ 70.
- 13 *Ibid*.